ORDINANCE NO. 338

AN ORDINANCE TO ADOPT A LAND SUBDIVISION AND DEVELOPMENT CODE FOR THE CITY OF RECTOR, ARKANSAS AND FOR OTHER PURPOSES.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1. The purpose of this ordinance is to promote the health, safety and general welfare of the citizens of Rector; to help logical community growth and development; to assist and cooperate with subdividers in planning their subdivisions; to establish minimum standards for the installation of physical improvements to be dedicated to the City; to secure a coordinated street system having the best relationship between various parts of the City; to provide for the convenience, safe movement of traffic, to provide individual lots of maximum utility.

SECTION 2. This ordinance shall be known and cited as the City of Rector Land Subdivision and Development Code, Ordinance No. 338 of 1977.

SECTION 3. The jurisdiction of this ordinance shall be as follows: These regulations shall apply to all forms of subdividing and shall be applied to all lands within the City of Rector that are platted and dedicated to the City of Rector for development purposes.

SECTION 4. After the effective date of this ordinance:

(1) No plat shall be recorded and accepted by the Circuit Clerk and Ex-Officio Recorder of Clay County unless approved by the City of Rector or the Rector Planning Commission.

SECTION 5. Whenever a subdivider desires to create a subdivision as set forth in these regulations, before the development, the following actions must be taken:

(a) The subdivider must first file a letter of intent with the City of Rector or the Rector Planning Commission indicating the type of development intended and a general description of the land to be developed.

(b) After the City of Rector or Rector Planning Commission has reviewed the letter of intent and general description of the land to be developed, the subdivider may proceed with the preparation of the preliminary plat in conformance with the design and layout requirements, improvements, requirements and any recommendations of the City of Rector or Rector Planning Commission relative to any ordinance or plans of record pertaining thereto.

(c) After the letter of intent is issued the land must be platted by a registered professional engineer licensed in the State of Arkansas.

(d) The subdivider must submit plans to the Rector Water Department for its approval as to any water and sewer facilities that will be constructed in the subdivision.

(e) The subdivider must also present plans concerning the water and sewer services to the State Health Department; said plans must be completed by a registered, professional engineer and the plans must be approved by the State Health Department.

(f) The subdivider must be willing to pave or blacktop the streets in the subdivision. In the event he desires to do this at a later date, he must submit a corporate surety or personal surety bond to assure that the streets will be done properly at a later date.

(g) The subdivider must provide the City of Rector or Rector Planning Commission with a letter from the utility company indicating that the utility company will maintain the utilities in the area and accept the responsibility for service to the subdivision.

(h) The subdivider must submit a plan of the drainage proposed for the streets.

(i) When the subdivider meets the requirements for improvements and submits a final plat and any other required documents, the City of Rector or Rector Planning Commission will give final plat approval permitting the plat to be filed with the Circuit Clerk and Ex-Officio Recorder.

SECTION 6. The following information shall be required on the preliminary plat:

(a) Name of subdivision

(b) Boundary of subdivision with legal description of enclosed property;

(c) Names and addresses of owners and developers and surveyors;

(d) Approximate acreage in subdivision tract

(e) Date, map scale and north arrow

(f) Location and names of all streets, alleys and easements within and connecting the proposed subdivision

(g) Dimensions of all streets and alleys, rights-of-way, lots and easements

(h) Location and dimensions of all building set back lines

(i) Location of railroads and other property owned by utilities within or adjacent to the proposed subdivision

(j) General size and shape of lots.

SECTION 7. The following information shall be required on the final plat:

(a) Name of subdivision

(b) Boundary of subdivision with legal description of enclosed property

(c) Names and addresses of owners, developers and surveyors

(d) Approximate acreage in subdivision tract

(e) Date, mape scale and north arrow

(f) Location and names of all streets, alleys and easements within and connecting with the proposed subdivision

(g) Dimensions of all streets and alleys, rights-of-way, lots and easements

(h) Bearing of all lines not parallel or perpendicular to lines of known bearing

(i) Location of all monuments

(j) Location and dimensions of all building set back lines

(k) Location of railroads and other property owned by utilities within or adjacent to the proposed subdivision.

(l) Legal description of lot and block

(m) Dedication of all streets, alleys, parks, etc. to the public

(n) Street curvature characteristics

(o) Notice of plat covenants

(p) Surveyor's certificate

(q) Approval of the appropriate municipal body

SECTION 8. The following regulations shall apply to the subidivions:

(a) The subdivision plat shall conform to all official plans currently in effect.

(b) Land subject to flooding or topographically unsuitable for residential occupancy, and which the City of Rector or the Rector Planning Commission considers inappropriate for subdivision, shall not be platted for that use or any other use that may increase danger to health, life or property or aggravate erosion or flood hazard. If such land is in the proposed plat, this land shall be set aside for such uses that will not be affected by periodic flooding or unsuitable topographic conditions unless adequate methods are formulated by the developer and approved by the City of Rector or the Rector Planning Commission.

(c) Street location shall be such as to provide each lot with a desirable elevation, size and shape which will permit proper setback of structures and their satisfactory placement on the lot.

(d) Curvature of streets should have a minimum value that will permit adequate sight distance at the desired vehicular speed

(e) The minimum street width shall be 50 feet.

(f) Grades of streets shall be determined according to the prevailing terrain. Sufficient grade shall be provided to insure drainage. The design and layout features should be in general conformance with the design and layout guide maintained by the City of Rector or the Rector Planning Commission.

(g) The size and shape of the lots shall not be required to conform to any stipulated pattern, but insofar as practical, side lot lines should be at right angles to straight street lines or radial to curved street lines. Lot sizes shall be a minimum of 90 feet across and 135 feet deep. Lots are to be of such shape as to best accommodate the type of house to be built in order to provide for adequate spacing between houses.